

**NORTH CASTLE PLANNING BOARD MEETING
15 BEDFORD ROAD – TOWN HALL MEETING ROOM
7:00 P.M.
FEBRUARY 12, 2024**

PLANNING BOARD MEMBERS: Christopher Carthy
Steve Sauro
Michael Pollack
Jim Jensen
Larry Ruisi

Also Present: Adam R. Kaufman, AICP
Director of Planning

KSCJ Consulting: Joseph Cermele, PE

Stephens, Baroni, Reilly & Lewis, LLP Roland A. Baroni, Esq. Town Counsel

Conservation Board Representative: Vincent Giordano

MINUTES:

January 22, 2024

Mr. Ruisi made a motion to adopt the January 22, 2024 minutes, the motion was seconded by Mr. Pollack and approved with five ayes.

PUBLIC HEARING:

12 MAPLE AVE [2023-029]

12 Maple Ave

108.01-1-6-26

Site Plan

Tony Veneziano

Discussion

Existing 1,700 square foot building built in the 1820s. The Applicant is proposing an addition to the structure to house a new 3,600 square foot 144 seat restaurant. The restaurant will also include an outdoor dining roof deck and porch dining.

The Planning Board opened the public hearing regarding this application. Prior to soliciting public comment [Mr. Stefan Martinovic presented a detailed review of the project and state of affairs of parking in the Armonk Hamlet](#) for the benefit of the Planning Board and public.

Several residents were in attendance regarding this public hearing. Six residents expressed strong support for the project and encouraged the Planning Board to approve the requested site plan.

Two residents in attendance expressed concern that the project was too intense for the site and would create adverse parking impacts upon surrounding properties.

The Planning Board conducted a lengthy discussion regarding the project, parking and impacts within the hamlet. It was stated that the perceived parking problem in the hamlet can best be resolved by a larger scope solution by the Town Board. The Planning Board also acknowledged that the Board would be willing to attempt to resolve the parking impacts of the proposal at this time; however, the Board remains skeptical that off-street parking will be adequate, particularly during the lunch service.

The Town Attorney discussed with the Board the two off-site parking agreements. He reported that the 20 Maple Ave agreement had, in his opinion, deficiencies with respect to how and when the parking agreement could be terminated by the Applicant.

At this point Mr. Carthy made a motion to convene an Executive Session to discuss legal advice with the Town Attorney, the motion was seconded by Mr. Ruisi and approved with five ayes.

Upon return to the meeting room, Mr. Carthy made a motion to reconvene the regular meeting, the motion was seconded by Mr. Sauro and approved with five ayes.

Mr. Baroni stated that the Applicant should be required to amend the 20 Maple Ave parking agreement to specifically enumerate the conditions as to when the parking agreement can be terminated by the Applicant. The Planning Board agreed that the revision is required.

After discussion, the Applicant agreed to modify the proposed valet parking plan by adding two valet stations, one at 12 Maple and one at 20 Maple, in order to address the concerns of the Planning Board and Police Department. The Applicant was directed to update the plan and submit the plans to the Planning Department so that the plan can be reviewed by the Police Department.

The Board directed staff to prepare a draft resolution of approval for consideration at the February 26, 2024 Planning Board meeting. The Planning Board noted that the drafting of the resolution should not be considered to be tacit approval of the site plan by the Board.

23 BEDFORD BANKSVILLE ROAD [2020-032]

23 Bedford Banksville Rd.

102.04-1-9

Site Plan

Tony Veneziano

Discussion

Proposed site plan for the occupancy of an existing 15,500 square foot multi-tenanted building consisting of office and storage uses. In addition, the site plan depicts the removal of the existing contractor's yard and the construction of a new 68,000 square foot warehouse (selfstorage) in the GB Zoning District.

This item was not discussed and rescheduled to February 26, 2024 by the Applicant.

THE GATEWAY [2023-016]

45 Bedford Rd

108.03-1-65

Site Plan

Tony Veneziano

Discussion

The Applicant is proposing to construct a new 34 unit (68 bedroom) multifamily residential project on the former Mariani Gardens property.

Mr. Carthy made a motion to reconvene the public hearing, the motion was seconded by Mr. Sauro and approved with five ayes.

Mr. Veneziano and Mr. Hoia made a brief presentation to the Planning Board and public.

No residents were present for the hearing.

The Planning Board PB directed the Applicant to return to the Planning Board after the open issues with the ARB, Conservation Board and Town Board were fully addressed.

Airport [2023-038]

113 King St

118.02-1-1

Site Plan & Subdivision

Cuddy & Feder

Discussion

Construction of 125 attached townhomes on the 34.3 acres zoned R-MF-A and adaptive reuse of the existing southern office building with 50 age-restricted apartments with a new parking structure on the 4.5 acres zoned R-MF-SCH.

No residents were present for the hearing.

The Planning Board discussed two major outstanding planning issues: airport noise and recreation fees.

With respect to airport noise, after discussion, the Board agreed with the Applicant that the current method of noise attenuation would be consistent with FAA guidelines for adequately mitigating average aircraft noise; however, the Board noted that peak noise impacts will not be adequately mitigated and may be disturbing to residents.

With respect to the appropriate recreation fee for this project, the Board agreed with the Applicant that the recreation needs of the residents of the senior project will be adequately addressed by on-site amenities and that a recreation fee would not be required. For the 125 unit condo project, the Board determined that a fee of \$3,000/market rate unit and \$1,000/AFFH unit is appropriate for a total recreation fee of \$351,000.

The Board directed staff to prepare resolutions of approval for consideration at the February 26, 2024 Planning Board meeting.

Mr. Carthy made a motion to close the public hearing, the motion was seconded by Mr. Pollack and approved with five ayes.

MAJIDI SUBDIVISION [2023-037]

21 Whippoorwill Rd

107.04-1-11

Subdivision

JMC

Discussion

An existing lot is to be subdivided into two lots. The lots are within the R-2A zoning district.

Mr. Carthy made a motion to reconvene the public hearing, the motion was seconded by Mr. Sauro and approved with five ayes.

No residents were present for the hearing.

Mr. Pollack made a motion to close the public hearing, the motion was seconded by Mr. Carthy and approved with five ayes.

Mr. Pollack made a motion to adopt a negative declaration, the motion was seconded by Mr. Carthy and approved with five ayes.

Mr. Pollack made a motion to adopt the preliminary subdivision resolution, the motion was seconded by Mr. Carthy and approved with five ayes.

Mr. Pollack made a motion to adopt the final subdivision resolution, the motion was seconded by Mr. Carthy and approved with five ayes.

DISCUSSION:

SUMMIT CLUB [2020-051]

570 Bedford Rd.

101.02-28.2

Site Plan

Paul R. Sysak, RLA

Discussion

Extension of Time

Planning Board Site Plan, Steep Slopes Permit and Tree Removal Permit Approvals. The proposal provides for 73 residential units containing 176 bedrooms in seven buildings. Seven of the units will be will be AFFH units.

Mr. Carthy made a motion to adopt the extension of time resolution, the motion was seconded by Mr. Ruisi and approved with five ayes.

Mr. Carthy made a motion to adjourn the meeting, the motion was seconded by Mr. Sauro and approved with five ayes.

Meeting adjourned at 11:13 p.m.